

8/26/14

Delapa Properties
511 Washington Street
Norwood, MA 02062

Re: Wetland Border Report
42 Mill Street, Westwood, MA

Dear Mr. Delapa :

On August 7 and 22, 2014 the wetland resources were delineated on the parcel known as 42 Mill Street in Westwood, MA. The wetland border was flagged using the criteria in the most recent edition of MA Wetland Protection Act (WPA) and Regulations 310 CMR 10.00 et al and the Westwood Wetlands Protection Bylaw. Hydric soil indicators, vegetation changes, hydrological indicators, and topography were all considered for delineation purposes.

Two Bordering vegetated wetlands (BVWs) were flagged on-site. This wetland associated with a large ponded area was flagged with series GC 1- GC 66. This wetland is dominant in red maple, elm, sweet pepper bush, winterberry, sphagnum moss, skunk cabbage, jewelweed and wetland ferns. The adjacent upland is dominant in vegetation consisting of red maple, white pine, oak, sweet pepper bush, witch hazel and honeysuckle. Department of Environmental Protection BVW field data forms were documented at wetland flag # GC-62 (see attached form).

A second BVW was flagged with series B-1-B-25. This wetland is located in the western section of the parcel and is vegetated with species dominant in red maple, arrowwood, spicebush, cinnamon fern and skunk cabbage. The adjacent upland is dominant in red maple, rose, arrowwood, bittersweet and hay-scented fern. Department of Environmental Protection BVW field data forms were documented at wetland flag # GC C-25 (see attached form).

The top of Bank of Mill Brook, a perennial stream as shown on the USGS map, was delineated in the field by the first break in slope with flag series D1-8 and E1-16. The Bank heights are 6" to 1-foot and are vegetated with stinging nettles, cardinal flower, cinnamon fern, rose and red maple. The approximate width of the river in this section was 10-20-feet wide. This river was documented dry for four days (see attached photographs). As a result and in an effort to over come the USGS perennial map line presumption, Goddard Consulting has been photo-documenting the stream channel dry for four (4) days during a non-drought time. This photo-documentation is enclosed within this report and is based on 310 CMR 10.58 (2) d; which states this perennial assumption can be overturned:

"....the issuing authority shall find any stream is intermittent based upon a documented field observation that the stream is not flowing. A Documented field observation shall be made by a competent source and shall be based on an observation made at least once per day, over four days in any consecutive 12 month period..."

If testimony and the attached photo documentation is provided to the Commission the Commission, the Commission can deem a section of the stream as intermittent according to the regulations in 310 CMR 10.58 (2) d and 310 CMR 10.58 (3) which states in part:

"....Where the applicant provides information that the riverfront area at the site of the activity does not play a role in the protection of an interest, the issuing authority may determine that the presumption for the interest has been rebutted and the presumption of significance is partially overcome."

If the perennial status of the stream channel is not overcome the Wetlands Protection Act will enforce a 200-foot Riverfront Area associated with this mapped perennial stream and the local Conservation Commission will have jurisdiction from the delineated Bank line outwards 200-feet. Therefore any work within 200 feet of the channel will need to be permitted via a Notice of Intent or Request for determination with the Commission. If the presumption is overruled with supporting evidence as quoted above the stream channel will be considered intermittent with a Bank resource and a 100-foot buffer zone rather than 200-foot Riverfront Area. And due to the adjacent BVW the 100-foot BVW Buffer Zone area will extend beyond the 100-foot Bank Buffer Zone along the eastern side of the channel.

According to the Mass GIS data layers for NHESP, this site is not located within Estimated and/or Priority Habitat of Rare Wildlife and no mapped certified or potential vernal pools are located on or near the site. The site does not contain an ACEC or Zone II area however almost the entire site is located within a regulated FEMA Flood Zone; Zone AE and is associated with the resource area Boarding Land Subject to Flooding. According to FEMA Flood Map the flooding is associated with elevations 194-186.

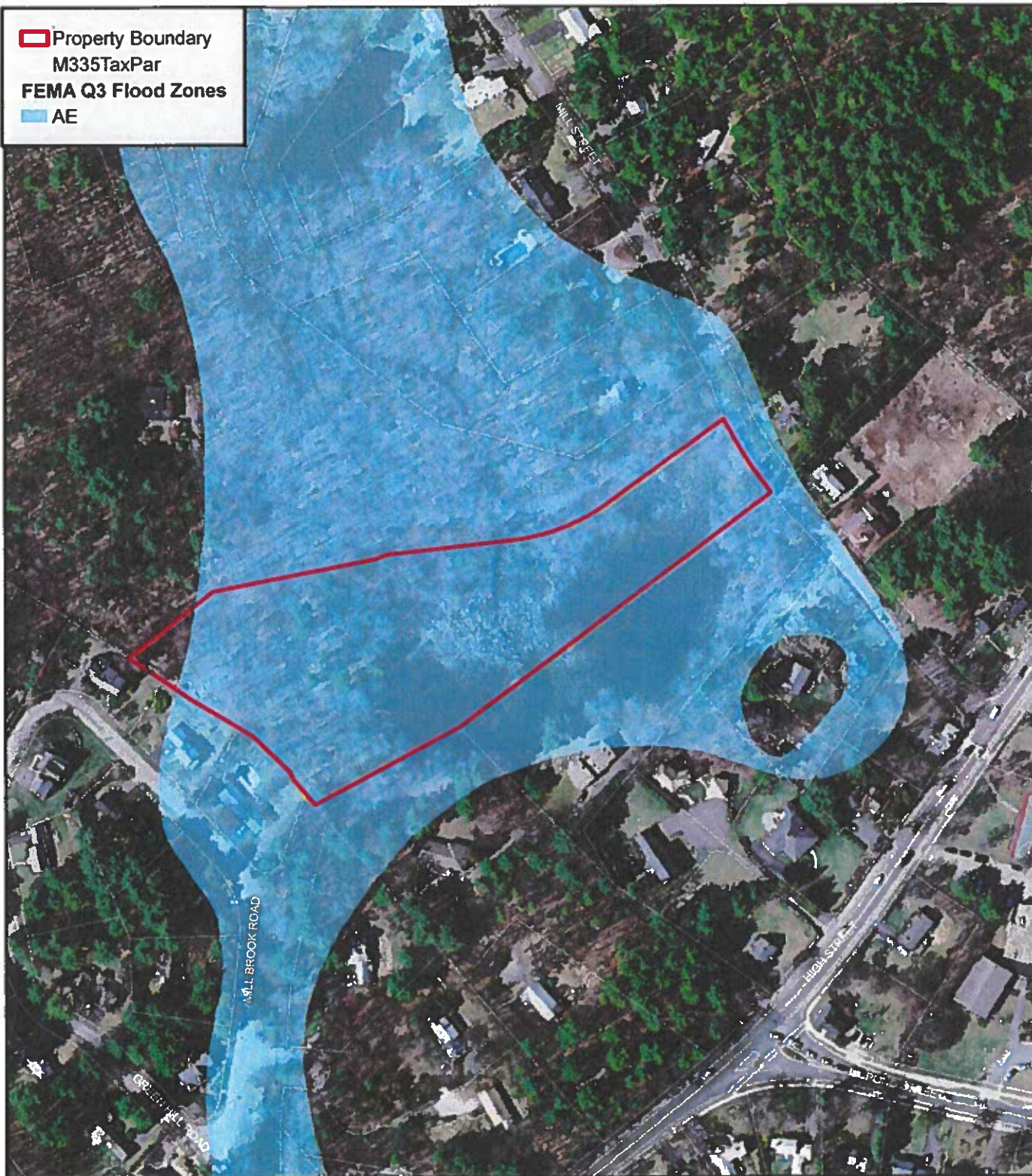
Both the Massachusetts Wetlands Protection Act and the local Bylaw regulates any work within BVW and within 100 feet of this resource area (100-foot BVW Buffer Zone). Mill Brook deemed intermittent has a 100-foot buffer zone. Almost the entire parcel is located with FEMA Flood Zone AE and therefore land located up-gradient of the BVW line within the elevation 194-186 is located within Bordering Land Subject to Flooding a protected resource area. As a result any work located within these areas on this site would require a Request for Determination (RDA) or Notice of Intent (NOI) be filed with the Westwood Conservation Commission. If there are any questions concerning this report or for assistance in filing, please contact us.

Very truly yours,
GODDARD CONSULTING, LLC



by
Scott Goddard, Principal & PWS

Property Boundary
M335TaxPar
FEMA Q3 Flood Zones
AE



Orthophoto View of Site

42 Mill Street - Westwood, MA



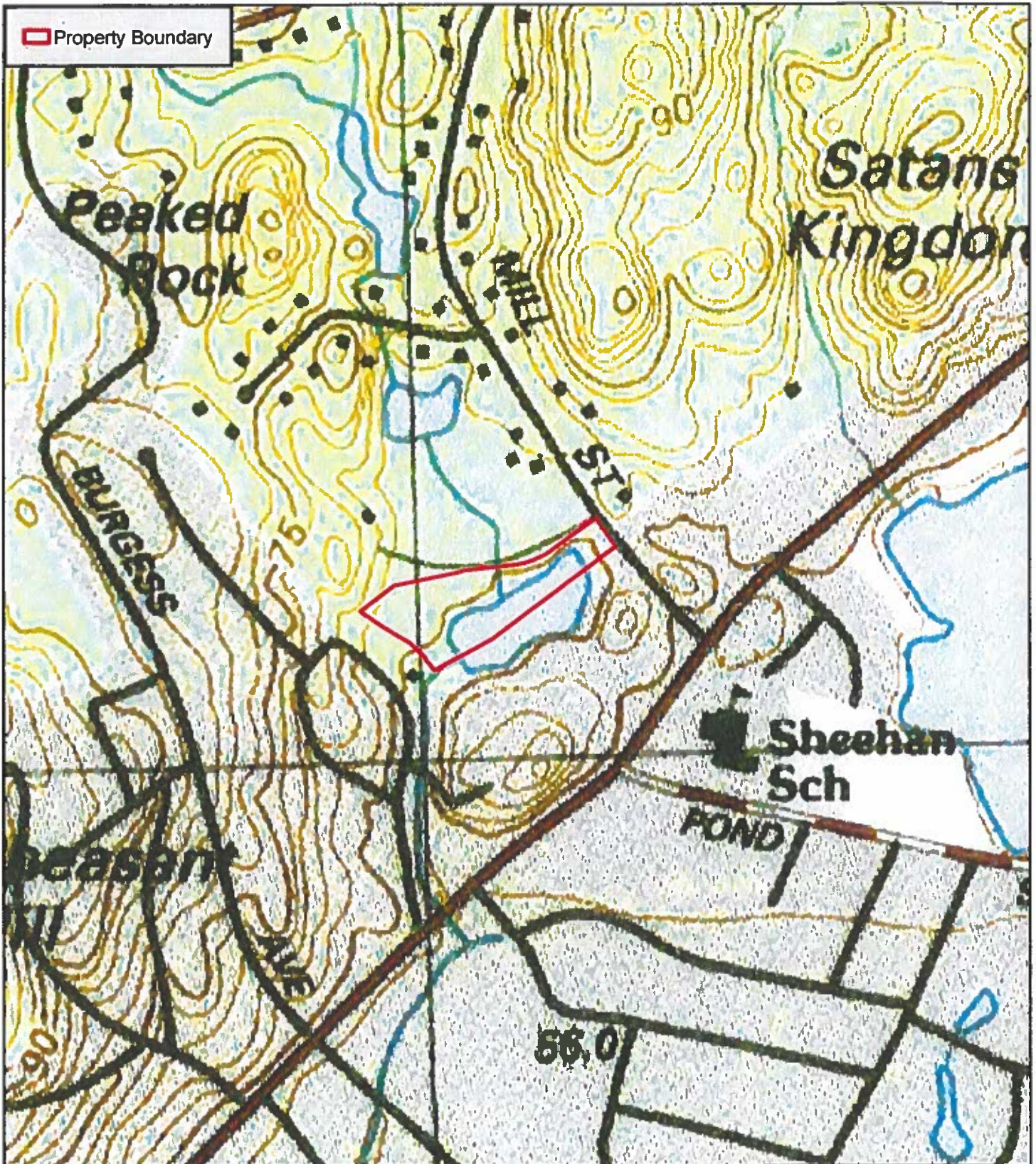
0 50 100 200
Feet

1 inch = 200 feet

Date: 5/22/2014

GIS Data Source: "Office of Geographic Information
(MassGIS), Commonwealth of Massachusetts Information
Technology Division"

GODDARD CONSULTING



USGS Site Locus

42 Mill Street - Westwood, MA



0 125 250 500
Feet

1 inch = 500 feet

Date: 5/22/2014

GIS Data Source: "Office of Geographic Information
(MassGIS), Commonwealth of Massachusetts Information
Technology Division"

GODDARD CONSULTING

Photo-documentation of Mill River Dry September 1-4, 2014
42 Mill Street, Westwood, MA



Photograph 1. September 1, 2014. Close up of flags and dry channel in background

Photo-documentation of Mill River Dry September 1-4, 2014
42 Mill Street, Westwood, MA



Photograph 2. September 2, 2014 showing channel dry.

Photo-documentation of Mill River Dry September 1-4, 2014
42 Mill Street, Westwood, MA



Photograph 3. September 3, 2014. Close up of flags and dry channel in background



Photograph 4. September 4, 2014 distant photo of dry channel

**Photo-documentation of Mill River Dry September 1-4, 2014
42 Mill Street, Westwood, MA**



Photograph 5. A close up of all flags September 1-4, 2014 and channel dry.